

# An Imperfect UNION

As the shards of political turmoil and the fruits of economic growth of the last 35 years collide in uneven ways, it's time for India to have a new social contract

| By Sunil Khilnani |

In 1975, India was teetering about. The country's future looked more uncertain than at any point since Independence. In June of that year, civil and political rights were suspended, and India seemed poised to reverse the course on which our founders had set us in 1947: the effort to create a democratic society of individuals free to live under the law. As the polity was losing its foundational identity, the economy too was dysfunctional, plagued by shortages and systemic inefficiencies, presided over by corrupt administrators, and directed towards providing revenues for a state unable to fend for itself. We were a society that had allowed ourselves to be cowed by fear—fear of political leaders and operatives, fear of tale-telling friends and neighbours, fear of shortages and outages.

We have had subsequent terrible years—1984, 1992 and 2002. But the assaults on India's constitutional identity made in these years were by actors and forces other than the state itself. In a crucial respect, 1975 was our lowest point as a nation because the enemy was the state itself. Our elected leaders, and their chosen courtiers, tried to subvert our constitutional being from within. And they were enabled by mass cowardice and acquiescence on the part of the great majority of India's educated urban elite, the supposedly alert defenders of democracy and civil rights. How exactly we managed to avoid becoming a mediocre authoritarian regime—an overblown, oversized Philippines or Bangladesh—remains an enigma. Why did Indira Gandhi call elections in 1977? It was not the result of popular resistance or pressure on the part of our polity.

When we look back, almost three-and-a-half decades later, at this black interlude in our history, the story seems one of near catastrophe followed by a chastised correction: from rock bottom, a sustained, mainly healthy rebound. Sideline during the Emergency, the courts bounced back as vanguard defenders of constitutional and human rights, reasserting the law's prerogative over the conduct of the state. Energised as a result of its two-year suspension, electoral democracy saw a surge in levels of participation, and a rise in regional parties that

claimed greater representative qualities than their national rivals. The economy clambered to its feet and soon broke into a canter. Cultural life too acquired a new richness with literature, art and cinema demonstrating a spirit of independence. It is in part to the Emergency that we owe the greatest work of literature about India of the past 30 years, Salman Rushdie's *Midnight's Children*. And yet: have we really dispersed the demons that had crowded in on us in 1975? In some crucial respects, I think not, for some of the core problems that resulted in that impasse haunt us till date. What brought us to that crisis? It was at once a real structural tension, and a blockage in our ideas and imagination.

First of all, there was an unmanageable disjunction between the demands of politics and requirements of longer-term reflection and vision to coordinate as well as direct economic and social development. Since the late 1960s, politics was being redefined in a populist direction, with politicians offering immediate satisfactions in return for electoral support. Indira Gandhi hoped to by-pass the pesky demands of a short-memory electorate and of dissident voices (the demands, that is, of a functioning electoral democracy) in favour of the more considered social schema of would-be intellectuals. She was guided, as was the fashion of the times, by Leftist notions of plan-perfect societies, and had it not been for a fateful June morning flight over Safdarjung airfield, we might still be having to enact those deluded visions, or undo them.

It has become conventional to locate the blame for the authoritarian swerve of the Indian state in the mid-1970s on some quirk of Mrs Gandhi's psychology: to reduce the Emergency to an effect of biography. But the basic dilemma that she sought to resolve by authoritarian means remains ours: how to connect the validation of power by numbers (the vote) with the justification of power before the tribunal of reason (the use of power for purposeful, public and legitimate ends)?

The Emergency experience inoculated us against the Mussolini syndrome, and took us full-tilt into the democratic way—so that now, the winning of

